

26SMCV01660 26SMCV01660

County: los-angeles

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

September 3, 2026

CASE NUMBER

26SMCV01660

MOTION

Protective Order

MOVING PARTY

Defendant Yvonne Bonita Hatherill

OPPOSING PARTY

Plaintiff Shahrokh Cohen

MOTION

This case arises from a dispute concerning a motor vehicle collision.

On March 25, 2026, Plaintiff Shahrokh Cohen ("Plaintiff") filed suit against Defendant Yvonne Bonita Hatherill ("Defendant") alleging a single cause of action for negligence, arising from an automobile collision.

Defendant now moves for a protective order reducing the number of special interrogatories Defendant must respond to and for monetary sanctions. Plaintiff opposes the motion and Defendant replies.

ANALYSIS

1. PROTECTIVE ORDER

"The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2030.090, subd. (b).) The protective order may include direction that interrogatories need not be answered. (Code Civ. Proc., § 2030.090, subd. (b)(1).) A party seeking a protective order must show good cause for issuance of the order by a preponderance of the evidence. (Stadish v. Superior Court (1999) 71 Cal.App.4th 1130, 1145.)

A party may propound to another party thirty-five specially prepared interrogatories that are relevant to the subject matter of the action. (Code Civ. Proc., § 2030.030, subd. (a)(1).) No party may, as a matter of right, propound more than 35 specially prepared interrogatories. (Code Civ. Proc., § 2030.030, subd. (b).) Unless a declaration as described in Section 2030.050 has been made, a party need only respond to the first 35 specially prepared interrogatories. (Code Civ. Proc., § 2030.030, subd. (c).)

Here, on July 9, 2026, two days after Defendant filed the Answer in this matter, Plaintiff propounded 64 special interrogatories, 59 form interrogatories, 31 requests for admission, and 47 requests for production of documents.

(Ex. A-D to Karaoglanian Decl.)

Defendant argues that although the requisite declaration was included with the request, indicating that the additional interrogatories are necessary because of the complexity of the case, it does not demonstrate what the complexity is, in light of the fact that this appears on its face to be a simple automobile collision case.

Further, the special interrogatories are duplicative of the form interrogatories.

For example, special interrogatory numbers 42, 50-64 ask about insurance which was asked in form interrogatory No. 4.

Further, special interrogatory numbers 37-40 ask about defendant's injuries, which were already asked in form interrogatories 6.1 and 6.2.

In opposition, Plaintiff emphasizes that discovery in California is broad, and argues that all four of Defendant's affirmative defenses, every element of Plaintiff's claim, and comparative fault remain at issue. Further, Plaintiff has inquired about various insurance policies that may cover the incident.

Ultimately, the Court does not find Plaintiff has adequately substantiated the need for special interrogatories in excess of the standard 35 in a "garden variety" motor vehicle collision in which the Plaintiff has asserted only a single cause of action for negligence and Defendant has asserted only four affirmative defenses.

As such, the Court grants Defendant's request for a protective order.

Defendant need not answer the special interrogatories already propounded and Plaintiff may propound anew up to 35 special interrogatories, unless otherwise agreed to by the parties in writing or subsequently ordered by the Court.

2. MONETARY SANCTIONS

Defendant requests monetary sanctions pursuant to Code of Civil Procedure section 2033.080, subdivision (d). However, that provision applies to requests for admission, not special

interrogatories. As such, the statutory authority cited does not support Defendant's request for monetary sanctions.

Nevertheless, the Court does not find the imposition of monetary sanctions to be warranted under the circumstances as the parties had a good faith dispute under the Discovery Act.

CONCLUSION

AND ORDER

For the foregoing reasons, the Court grants in part Defendant's motion for a protective order. Defendant need not answer the special interrogatories already propounded and Plaintiff may propound anew up to 35 special interrogatories, unless otherwise agreed to by the parties in writing or subsequently ordered by this Court.

Further, the Court denies Defendant's request for monetary sanctions.

Defendant shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED:

September 3, 2026 _____/s/_____

Michael E. Whitaker

Judge
of the Superior Court